TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to "grant".** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV02916

MENDOZA et al. v. SE-SANTA CRUZ LLC et al.

DEFENDANTS' MOTION TO QUASH/MODIFY SUBPOENAS

This motion is denied in part and granted in part. Initially, documents directly related to plaintiffs and their residential accounts shall be produced without redactions no later than August 7, 2026, as described below. The parties are free to continue to meet and confer and craft an appropriate protective order related to documents not ordered now, but deferred, related to the subpoenas.

Plaintiffs Liborio Mendoza, Heidi McCoy, Matthew Cavalli and Steve Knobles allege defendants Se-Santa Cruz, LLC, Sridhar Equities, Inc., Madhu Sridhar, Anjali Sridhar, Carol Santos, Lauren Sunseri, and Silvia Gonzalez engaged in a systematic scheme that included disabling or interfering with the established rent-payment portal, refusing to accept and process timely rent payments, concealing and misrepresenting tenants' payment status, and fabricating the notice-and-cure process required for a lawful eviction, so that tenants would be unable to cure any claimed delinquency before defendants moved to recover possession. (First Amended Complaint ("FAC") ¶¶ 2, 24-26, 33-34, 42.) They allege that defendants and High Street Residential No. Cal. Development, Inc. sought to develop the rental properties occupied by plaintiffs (and many others). They state causes of action for conspiracy to violate the California Tenant Protection Act, conspiracy to defraud tenants, intentional infliction of emotional distress, violation of Civil Code section 1950.5, and unfair business practices.

Plaintiffs resided in three properties managed by defendants SE-Santa Cruz LLC and Sridhar Equities, Inc. (130 Hubbard Street, 1008 ½ Ocean Street, and 1014 Ocean Street, Santa Cruz, CA).

At issue are plaintiffs' business subpoenas to AppFolio (17 document requests) and High Street Residential No. Cal. Development, Inc. (20 document requests).

The Court finds that much of the information sought is likely to lead to relevant admissible evidence directly related to plaintiffs' claims with some caveats. First, as to the AppFolio subpoena, the Court grants the motion as to the three accounts associated with plaintiffs -- 130 Hubbard Street, 1008 ½ Ocean Street, and 1014 Ocean Street, Santa Cruz, CA; as to the other 17 accounts held by AppFolio for other parties, the Court will defer that information until after the production related to plaintiffs' accounts. This will minimize the impact on unnamed party confidentiality (bank accounts and other private financial information) and eliminate any need for defendants to have a "first look." At this time, no information from AppFolio for addresses not associated with plaintiffs shall be produced. But any request related to addresses associated with plaintiffs shall be produced, including communications between and among defendants, and between defendants and plaintiffs, related to accounts associated with plaintiffs (documents dated January 1, 2021 to the present).

Second, as to the High Street Residential No. Cal. Development, Inc. ("High Street") subpoena, the Court grants the motion as to all 20 requests finding that they seek information directly related to the subject properties and plaintiffs, and most of the requests seek documents related to the development project. The Court notes that while defendants contend confidential business information could be disclosed, High Street failed to assert any objections to the subpoenas. The party asserting a trade secret (and resulting non-disclosure) bears the burden to establish a legally protected interest and the harm disclosure would cause. (*Bridgestone/ Firestone, Inc. v. Superior Court* (1992) 7 Cal.App.4th 1384, 1393; *Raymond Handling Concepts Corp. v. Superior Court* (1995) 39 Cal.App.4th 584, 590.)

To the extent the requests seek communications between defendants and High Street about the project or relocation of tenants, the Court limits those requests to just the properties associated with plaintiffs.

No. 26CV00475

<u>LARSSON v. ESCHEN</u>

<u>PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT</u>

Plaintiff's motion is denied without prejudice.

I. BACKGROUND

Self-represented plaintiff April Larsson sued her former attorney, defendant James Eschen, for legal malpractice, breach of fiduciary duty, and breach of contract on February 11, 2026. She alleges defendant failed to attend a mandatory creditors meeting related to a judgment she obtained, lied to her that the meeting had been rescheduled when it had not, and failed to adequately represent her resulting in the discharge of the debt in bankruptcy and the loss to her of her judgment worth $72,739.92.

Plaintiff now seeks to add a cause of action for fraud/intentional misrepresentation. The extent of her fraud allegations are:

> "Defendant falsely represented to Plaintiff that the meeting had been rescheduled when it had not. Defendant failed to inform Plaintiff that the bankruptcy case was dismissed and later that the debt was discharged. Defendant failed to file objections or initiate an adversary proceeding within required deadlines. Defendant ceased communication and abandoned representation without notice. […] Defendant knowingly made false statements, including that the 341 Meeting was rescheduled. Defendant knew these statements were false or acted with reckless disregard. Defendant intended Plaintiff to rely on these statements. Plaintiff reasonably relied on them. Plaintiff suffered damages as a result. Defendant's conduct was willful, fraudulent, and oppressive, justifying punitive damages." (Plaintiff's proposed first amended complaint.)

These allegations are not significantly different than in the initial complaint, they merely add conclusory statements for fraud. Plaintiff seeks to add punitive damages as well.

II. LEGAL STANDARDS

Leave of court is required to amend any pleading except as provided by Code of Civil Procedure sections 472 and 474. A judge may, in furtherance of justice and on proper terms, allow the amendment of any pleading at any time, even after commencement of trial. (Code Civ. Proc., §§ 473, subd. (a), 576; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488